

2015 WL 5927831 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Kings County

Elliot JACKSON, Plaintiff,

v.

THE CITY OF NEW YORK, Police **Officer** Wanda Gowins (Shield# 02967), Police **Officer** Mohamed Mohamed (Shield #18337), Police **Officer** John Doe #1, Police **Officers** John Does #2-4 (names and number of who is unknown at present), and other unidentified members of the New York City Police Department, Defendants.

No. 0512033-2015.
October 2, 2015.

Summons

[Ilissa Brownstein](#), Esq., 65 Broadway (Suites 813 & 814), New York, New York 10006, (212) 691-3333, for plaintiff.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York October 2, 2015

Respectfully submitted,

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street New York, NY 10007

POLICE **OFFICER** WANDA GOWINS (SHIELD# 02967) Brooklyn, New York

POLICE **OFFICER** MOHAMED MOHAMED (SHIELD #18337) Brooklyn, New York

Plaintiff **Elliot Jackson**, by his attorney, ILISSA BROWNSTEIN, ESQ., as and for the Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, [42 U.S.C. Section 1983](#), the rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police **officer** defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff and malicious prosecution of plaintiff.

Defendants additionally used excessive force in violation of Plaintiff's constitutional rights protected by the Eighth Amendment and the state tort laws.

PARTIES

2. Plaintiff Elliot Jackson is a citizen of the United States and a resident of Brooklyn, New York.
3. Police **Officer** Wanda Gowins (Shield #02967) is and was at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
4. Police **Officer** Wanda Gowins (Shield #02967) is being sued in her individual capacity and official capacity.
5. Police **Officer** Mohamed Mohamed (Shield #18337) is and was at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
6. Police **Officer** Mohamed Mohamed (Shield #18337) is being sued in his individual capacity and official capacity.
7. Police **Officer** John Doe #1 is and was at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
8. Police **Officer** John Doe #1 is being sued in his individual capacity and official capacity.
9. New York Police **Officers** John Doe #2-4 are and were at all times relevant herein an **officer**, employee, and agent of the New York City Police Department.
10. Police **Officers** John Doe #2-4 are being sued in his individual capacity and official capacity.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and **officers** of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as **officers**, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as **officers**, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police **officers** as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiff in furtherance of his State causes of action filed a timely (with regard to some claims) Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
15. The City of New York has not yet held a 50(H) hearing examination of the Plaintiff, because, as notified via stipulation of incarceration, Plaintiff is incarcerated.

STATEMENT OF FACTS

16. Elliot Jackson is 30 years old. From 2009 to 2010, Mr. Jackson worked in custodial maintenance.
17. On September 19, 2014, at approximately 8pm, inside a park on Myrtle Avenue and Throop Avenue in Brooklyn, New York, Mr. Jackson and his girlfriend walked through the park so that his girlfriend could use the bathroom.
18. It was still light out when they entered the park and there were no signs indicating that the park was closed.
19. **Officers** arrested Mr. Jackson for being in a park after sunset.
20. The **officers** hit Mr. Jackson on his face causing bruises.
21. Mr. Jackson was incarcerated for approximately 24 hours.
22. Mr. Jackson received an ACD at arraignment on September 20, 2014.
23. On account of his arrest, Mr. Jackson suffered from bruising to his face after the **officer** hit him.
24. The **officer** did not voucher his state ID, so it is lost.
25. Plaintiff filed a notice of claim on October 25, 2014.

FIRST CAUSE OF ACTION VIOLATION OF PLAINTIFF'S FOURTH AMENDMENT AND FOURTEENTH AMENDMENT RIGHTS

26. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. The individually named defendants who were acting in concert and within the scope of their authority at the NYPD arrested and caused plaintiff to be imprisoned without probable cause and subjected to an unlawful search in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty and the right to privacy under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION FALSE ARREST AND FALSE IMPRISONMENT

28. Plaintiff repeats and alleges paragraphs 1 through 27 as if fully set forth herein.
29. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
30. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
31. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION ASSAULT

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

34. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

35. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION BATTERY

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. Defendants their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

38. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of Defendants is responsible for his wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION FAILURE TO INTERVENE

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD.

44. Defendants failed to intervene to prevent the unlawful conduct described herein.

45. As a result of the foregoing, plaintiff was subjected to an illegal search.

46. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION NEGLIGENCE

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. Defendants owed a duty of care to plaintiff.

50. Defendants breached that duty of care by subjecting him to an illegal search.

51. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

52. All of the foregoing occurred without any fault by plaintiff.

53. The City, as the employer of the **officer** defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. By the actions described herein, the individually named police **officer** defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

56. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

57. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

NINTH CAUSE OF ACTION MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

60. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department included, but were not limited to policies, customs and practices wherein New York City Police **officers** arrest individuals without probable cause and create false versions of events to justify their actions.

61. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York Police Department were the moving force behind the violation of plaintiff's constitutional rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its **officers**, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

62. The foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

63. As a result of the foregoing customs, policies, usages, practices, and procedures and rules of defendant City of New York and the New York City Police Department, plaintiff was unlawfully arrested and prosecuted.

64. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

WHEREFORE, ELLIOT JACKSON, plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York October 2, 2015

Respectfully submitted:

By: Ilissa Brownstein

ILISSA BROWNSTEIN, ESQ.

Attorney for Plaintiff

65 Broadway

Suites 813 & 814

New York, New York 10006

(212) 691-3333